

demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.) Section 426.50 allows the court some modicum of discretion to deny leave to file a cross-complaint in determining whether a defendant acted in good faith. (*Ibid.*) An unexplained delay close to the time of trial may be evidence of a lack of good faith, especially where other factors suggest that they delay was for strategic purposes. (*Gherman v. Colburn* (1977) 72 Cal. App. 3d 544, 559-560.)

Here, there is no evidence of bad faith. At most there is evidence Defendant’s counsel unreasonably delayed bringing the instant motion. As noted, the motion to file a Cross Complaint should only be denied where there is evidence of bad faith.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502346	JONES VS BANNING UNIFIED SCHOOL DISTRICT	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT FOR OTHER EMPLOYMENT (OVER \$35,000) OF EUGENIA JONES BY BANNING UNIFIED SCHOOL DISTRICT

Tentative Ruling:

Defendant Banning Unified School District’ Motion for Judgment on the Pleadings is granted.

A defendant’s motion for judgment on the pleadings may be made on the grounds that the court lacks jurisdiction, or that the complaint does not state facts sufficient. (Code Civ. Proc., § 438(c)(1)(B).) A motion for judgment on the pleadings may be made after entry of a pretrial conference order, or 30 days before the initial trial date, whichever is later. (*Id.* at § 438(e).)

A motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.) The grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice. (*Id.*)

Government Claims Act

Under the Government Claims Act (the “Act”), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity (“government claim”) which must be acted upon or deemed rejected by the public entity. (Gov. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to

adequately investigate claims and settle, if appropriate, without the expense of litigation. (*Ibid.*) It is required irrespective of the public entity's actual knowledge of the circumstances. (*Ibid.*) A plaintiff must allege compliance, or an exception or excuse for not compliance exists. (*Id.*)

The claim must be filed within 6 months of the accrual of the cause of action, or with leave to file a late claim, no later than one year. (Gov. Code, §§ 911.2, 911.4.) If a plaintiff fails to file a government claim within the 6 month period, he or she may apply to the public entity for permission to file a late claim. (Gov. Code, § 911.4.) Such an application must be presented within a reasonable time, and not later than one year after the accrual of the cause of action. (Gov. Code, § 911.4(b).) If the claim against the public entity is barred, any claims against a public employee for injuries caused within the scope of employment are also barred. (Gov. Code, § 950.2.) Failure to plead compliance with the claims statute subjects the complaint to a demurrer. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

Here, Plaintiff does not plead compliance, which subjects the complaint to challenge. The parties dispute whether the Government Claims Act applies to Labor Code claims. The case of *Campbell v. Los Angeles Unified School District* (2024) 102 Cal.App.5th 151 is on point. An employee sued the school district for Labor Code section 1102.5 and FEHA. (*Id.* at 153.) The trial court sustained the school district's demurrer without leave to amend for failure to allege compliance with the Government Claims Act. (*Id.*) The court of appeals affirmed. (*Id.*) The appellate court, citing to *Le Mere v. Los Angeles Unified School District* (2019) 35 Cal.App.5th 237 and *Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, held that Plaintiff was required to submit a government claim within six months or one year of the accrual of a cause of action; failure to timely present a claim bars the suit. (*Id.*) Nor was there substantial compliance by submitting a complaint to the Department of Fair Employment and Housing (the predecessor to the Civil Rights Department), or the fact that the school district was aware of the claims. (*Id.* at 154.)

5TH CAUSE OF ACTION - LABOR CODE §§ 1102.5, 1102.6

Plaintiff's claim is based on section 1102.5(a), which provides:

An employer, or any person acting on behalf of the employer, shall not make, adopt, or enforce any rule, regulation, or policy preventing an employee from disclosing information to a government or law enforcement agency, to a person with authority over the employee, or to another employee who has authority to investigate, discover, or correct the violation or noncompliance, or from providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

Section 1106 defines employee.

The basis of the claim is work place harassment that Plaintiff reported. (Complaint ¶78.) This is based on FEHA. While Plaintiff alleges that there was a violation of local, state or federal laws dealing with safe operations of school busses, she does not identify those laws.

6TH CAUSE OF ACTION - LABOR CODE § 6310

Section 6310 prohibits an employer from discharging or discriminating an employee who has made a complaint regarding employee safety or health, unsafe working conditions or work practices. Plaintiff merely repeats the harassment claims. (Complaint ¶86). She fails to allege unsafe working conditions or work practices.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601589	DIMARCO VS WEST 8TH STREET TRUST	DEMURRER ON PLAINTIFF'S COMPLAINT WEST 8TH STREET TRUST, WILLIAM O. DOLES, MAXINE DOLES
CVRI2601589	DIMARCO VS WEST 8TH STREET TRUST	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF SOPHIA DIMARCO

Tentative Ruling:

Defendants' Demurrer as to the 4th, 6th, and 13th causes of action is overruled; as to the 5th, 7th, and 11th causes of action, it is sustained with leave to amend to amend within 20 days.

Defendants' Motion to Strike punitive damages is denied; as to striking attorneys' fees, it is sustained with leave to amend within 20 days.

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125). The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672). However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal. 2d 695, 713). Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.*